

PRIVATE SPONSORSHIP AND THE ETHICS OF REFUGEE PROCESSING

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EXECUTIVE SUMMARY

The scale of the refugee crisis makes it impractical to provide refugees with the human rights that most citizens enjoy - in particular the presumption of innocence.

Private sponsorship has the potential to restore those rights to some refugees without adversely affecting normal refugee processing.

THE ETHICAL CHALLENGES OF REFUGEE PROCESSING

In the book and film, *Sophie's Choice*, Sophie is forced to choose which of her two children to save. There is no acceptable choice but she must decide, so she makes an arbitrary choice which is clearly tragically unfair to the child who is not saved. Unfortunately this sort of impossible choice is an everyday reality for UNHCR staff processing refugee resettlement requests due to the overwhelming scale of the refugee crisis, limited resettlement quotas and limited staffing,

All refugees deserve the chance at a new life so any decision to settle one refugee instead of another will be unfair. A rational response to this ethical dilemma is to put in place processes that will maximize the total number of refugees resettled and minimize the resources needed to do the processing. In practice, this means processing the simpler cases ahead of the more difficult ones.

As an example of a difficult case, suppose that a refugee has served in the military in a conflict where atrocities have occurred. There is a possibility that the refugee might have been involved in those atrocities, which could disqualify them from resettlement. A proper investigation into the truth of the matter will be difficult and lengthy, so the pragmatic choice will be to choose a simpler case ahead of this case. Effectively this is a presumption of guilt. It is clearly unfair to the refugee in question. They become trapped in a limbo where they are unlikely ever to be resettled.

By contrast, a normal citizen in a similar situation has the right to be presumed innocent. That is an international human right defined in Article 11 of UN's [Universal Declaration of Human Rights](#). The accused has a right to an impartial trial. If nothing can be proven against them, they are presumed innocent and nothing is recorded against their name. If they subsequently choose to apply for a visa to live in some other country, the fact that they have been accused in the past would not normally count against them.

Even if a citizen is found guilty, they are given the opportunity to atone for their actions in some way, after which they are deemed to have repaid society and may get on with their life "with a clean slate". Normally this should not prevent them from being granted a visa.

Ethically, every refugee should have this same basic right but they do not because it is impractical given the scale of the refugee crisis. In the general case, it is hard to see how this can be avoided. However, in the special case of refugees who have been fortunate enough to have found private sponsors it should be possible to restore their normal rights. Moreover it should be possible to do so without adversely affecting normal refugee processing.

THE ROLE OF PRIVATE SPONSORSHIP

Private sponsorship was pioneered by the Canadian government in 1978 with their "Private Sponsorship of Refugees Program" where sponsorship of refugees was permitted by "any body corporate" or "any group of citizens or permanent residents". It is an important element of the [Comprehensive Refugee Response Framework](#) which was launched at the [New York Declaration](#) in September 2016. Most recently the Australian government is working with [Talent Beyond Boundaries](#) to develop a new kind of sponsored pathway designed to enable private enterprise to remotely recruit and sponsor refugees.

In the private sponsorship model, the sponsor provides the funding and other support required to successfully resettle a refugee. These are costs and responsibilities that government bears for normal humanitarian settlement, so privately sponsored refugees are logically additional to any government humanitarian quota. (Currently this is not always the case but the logic for additionality is so compelling given that the government is not bearing the cost that it is expected that it should eventually become the norm).

So private sponsorship increases overall resettlement numbers. As mentioned earlier, this is already an underlying goal of UNHCR strategy. Moreover private sponsorship is a source of funding which can be used to cover the additional cost of delivering a refugee's right to presumption of innocence and a proper trial where needed.

Clearly private sponsorship should be encouraged. It is a way of increasing the resettlement of refugees and the additional funding that it brings can be used to help restore basic human rights to at least some portion of the refugee population who have been denied them for so long.